

108	Hernandez-Magana vs. Volkswagen Group of America, Inc. 24-01450948	Motion to Tax Costs Defendant Volkswagen Group of America, Inc. (“Defendant”) moves to strike or tax costs in plaintiffs Sharon Hernandez-Magana and Jonathan Hernandez-Magana’s (“Plaintiffs”) Memorandum of Costs. Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation and shall be reasonable in amount. (Code Civ. Proc., § 1033.5(c)(2)-(3).) “If the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the plaintiff.” (Oak Grove School Dist. of Santa Clara County v. City Title Ins. Co. (1963) 217 Cal.App.2d 678, 698.) “The court’s first determination, therefore, is whether the statute expressly allows the particular item, and whether it appears proper on its face. [Citation.] If so, the burden is on the objecting party to show them to be unnecessary or unreasonable.” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131.) First, the Motion is GRANTED as to the \$295.00 late fee for January 28, 2026, as Plaintiffs concede that this cost was not reasonably incurred. As to the \$453.45 in costs for the July 2, 2025, notice of non-appearance, costs for taking, video recording, and transcribing necessary depositions are recoverable. (Code Civ. Proc., § 1033.5(a)(3)(A).) Thus, it is Defendant’s burden to show this cost to be unnecessary and unreasonable. Defendant argues it was unnecessary and unreasonable because Plaintiffs unilaterally noticed the deposition and Defendant timely objected. However, Defendant has not provided any evidence regarding its timely objection. Thus, Defendant has not met its burden as the objecting party to show that this
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		cost was unnecessary or unreasonable. Thus, as to the \$453.45 under Item 4, the Motion is DENIED. Moving party to give notice.
109	Jones vs. Soderling 18-01037445	Motion to Tax Costs x 3 Motion to Tax Costs as to Defendant, Tieback Holdings, LLC Plaintiffs Kimberly Moffatt Jones and 150 Newport Center Drive, LLC (“Plaintiffs”), move to tax costs in the amount of \$6,537.42 claimed by Defendant, Tieback Holdings, LLC (“Tieback”). “A party’s right to recover costs is governed entirely by statute. [Citation.]” (Boonyarit v. Payless Shoesource, Inc. (2006) 145 Cal.App.4th 1188, 1192.) “To obtain costs, a party must comply with the applicable rules of court. [Citation.]” (Ibid.) “A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” (California Rules of Court, rule 3.1700(a)(1).) Here, notice of entry of judgment was filed on April 28, 2026, and served on April 27, 2026, via electronic transmission. (ROA 2764.) Therefore, a memorandum of costs was required to be filed by May 12, 2026 (15 days after April 17, 2026).